

**CHAPTER xxviii.**

An Act to authorise the Sutton District Water Company to raise additional capital to confer further powers upon the Company and for other purposes. A.D. 1929.
[26th July 1929.]

WHEREAS the Sutton District Water Company (in this Act called "the Company") were incorporated by the Sutton District Waterworks Act 1871 and are by the Sutton District Waterworks Acts 1871 to 1921 empowered to supply water within the limits and to the extent mentioned in the said Acts :

And whereas a statement of the share and loan capital of the Company authorised issued and remaining to be issued is given in the schedule to this Act and it is expedient that the Company be authorised to raise further capital :

And whereas it is expedient that the said Acts of 1871 to 1921 should be amended and that further powers be conferred upon the Company with reference to their undertaking as by this Act provided and to enact the other provisions of this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present

A.D. 1929. — Parliament assembled and by the authority of the same as follows (that is to say) :—

Short and
collective
titles.

1.—(1) This Act may be cited as the Sutton District Waterworks Act 1929.

(2) The Sutton District Waterworks Acts 1871 to 1921 and this Act may be cited together as the Sutton District Waterworks Acts 1871 to 1929.

Incorporation of
Acts.

2. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act :—

The Companies Clauses Consolidation Act 1845 except the provisions with respect to the conversion of borrowed money into capital; and

The Companies Clauses Act 1863 (except Part IV) as amended by subsequent Acts.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“ The Company ” means the Sutton District Water Company;

“ The directors ” and “ the secretary ” mean respectively the directors and the secretary of the Company;

“ The Act of 1871 ” “ the Act of 1887 ” “ the Act of 1903 ” “ the Order of 1910 ” “ the Act of 1915 ” and “ the Act of 1921 ” mean respectively the Sutton District Waterworks Act 1871 the Sutton District Waterworks Act 1887 the Sutton District Waterworks Act 1903 the Sutton District Waterworks Order 1910 the Sutton District Waterworks Act 1915 and the Sutton District Waterworks Act 1921;

“ The existing Acts ” means the Sutton District Waterworks Acts 1871 to 1921;

“ The limits of supply ” means the limits of the Company for the supply of water as defined by the Act of 1871 and the Order of 1910;

“ The undertaking ” means the undertaking of the Company as for the time being authorised.

FINANCIAL PROVISIONS.

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4. The Company may from time to time raise by the creation and issue of ordinary stock and preference stock or of either such class of stock additional capital to such an amount as shall be sufficient to produce after taking into account premiums and discounts (if any) which may be obtained or allowed on the issue thereof the sum of four hundred and fifty thousand pounds and any sum so raised may be applied to such purposes of the undertaking (being purposes to which capital is properly applicable) as the Company may determine.

Additional
capital.

5.—(1) All ordinary and preference stock created by the Company after the passing of this Act shall subject to the provisions of this Act be issued in accordance with the provisions of this section.

New stock
to be sold
by auction
or tender.

(2) All such stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the directors shall from time to time determine Provided as follows:—

- (a) Notice of the intended sale shall be given in writing to the clerk to the council of every urban and rural district wholly or partly included within the limits of supply and to the secretary of the London Stock Exchange at least seven days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply;
- (b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be;
- (c) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds;
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum except that the offer by tender of any holder of stock of the Company

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may be accepted in preference to the offer of the same sum by any person not such a holder as aforesaid and preference may in like manner be given to any employee of the Company or consumer of water supplied by the Company;

(e) In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid;

(f) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of ordinary and preference stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of water supplied by the Company in such proportions as the directors may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of stock that if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and is not sold may at the discretion of the directors be again offered for sale by public auction or by tender in accordance with the provisions of this section or may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the stock.

Power to
borrow.

6. The Company may borrow on mortgage of the undertaking any sum or sums not exceeding in the

whole one-half of the amount which at the time of borrowing has been actually paid up (including premiums) on any ordinary and preference stock in the additional capital issued under the powers of this Act but no sum shall be borrowed in respect of any capital so issued until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole amount payable on the issue of the stock with respect to which the borrowing powers are exercised and of the premium (if any) realised on the sale thereof have been fully paid up. A.D. 1929.

7. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole. Appointment of receiver.

8. The Company may create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 and of section 24 (Debenture stock) of the Act of 1887. Debenture stock.

Notice of the effect of that enactment shall be endorsed on all mortgages granted and certificates of debenture stock issued by the Company under the powers of this Act.

9. All money to be raised by the Company under the provisions of this Act on mortgage or by the issue of debenture stock shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company in pursuance of any Act relating to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock. Priority of mortgages over other debts.

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Issue of
redeemable
preference
capital and
debenture
stock.

10.—(1) If the Company desire to raise by the issue of preference stock any capital which they are by this Act authorised to raise or to issue any debenture stock under the powers of this Act they may create and issue such preference stock or debenture stock as redeemable stock on such terms and conditions as may be specified in a resolution of the Company passed at a special meeting convened for the purpose.

(2) If it is so provided in the resolution the Company may—

(i) call in and pay off such preference or debenture stock or any part thereof at one hundred pounds for every one hundred pounds stock at any time before the date fixed for redemption;

(ii) redeem such stock or any part thereof either by paying off such stock or by issuing to any stockholder subject to his consent other stock in substitution therefor.

(3) For the purpose of providing money for paying off such stock or providing substituted stock the Company may create and issue new stock (redeemable or irredeemable) or re-issue stock originally created and issued as aforesaid so however that the creation and issue for that purpose of any particular class of stock does not make the total nominal amount of such stock exceed the amount of that class of stock which the Company are for the time being authorised to create except during the necessary interval between the creation and issue of the new stock and the redemption of the old stock.

(4) The Company shall not redeem out of revenue any redeemable stock so created and issued as aforesaid. Provided that it shall be lawful for the Company to pay out of revenue any premium which under the terms of issue of any redeemable stock issued under this section may be payable on the redemption thereof.

(5) The provisions of the section of this Act of which the marginal note is "New stock to be sold by auction or tender" shall not apply to any stock created and issued in substitution for any redeemable stock issued under the powers of this section.

Provisions
as to sale

11.—(1) Notwithstanding anything contained in the section of this Act of which the marginal note is

“New stock to be sold by auction or tender” the Company with the approval of the Minister of Health may—

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of stock
&c. and
payments of
commission.

(a) when ordinary or preference stock created under the powers of this Act is to be issued (and whether or not the then existing ordinary or preference stock is at a premium) before offering the stock so to be issued for sale by auction or tender offer the stock to the consumers of water supplied by the Company and persons in the employ of the Company at not less than the then value thereof;

(b) offer for subscription by the public free from the provisions of the said section of this Act (but subject to such conditions as the said Minister may think fit to impose) any stock to be so issued as aforesaid; and

(c) on the offer for sale or subscription by the public of any stock to be so issued as aforesaid or any debenture stock to be issued after the passing of this Act under the powers of the existing Acts and this Act pay a commission not exceeding five per centum. Provided that the payment of the commission and the amount or rate per centum of the commission paid or agreed to be paid shall be disclosed in every prospectus advertisement or other document of the Company relating to the offer for sale or inviting subscriptions for such stock.

(2) For the purposes of paragraph (a) of subsection (1) of this section the value of any stock at the date of the offer thereof to any consumer or employee shall be deemed to be the average price at which according to the Company's books sales of stock of the same class were effected within the period of six months immediately preceding the date on which the value of the stock is required to be determined or if there has been only one sale or no sale of such stock during such period then the price at which the last sale of such stock was effected making due allowance for any probable change in value since such date due to the accrual or payment of dividend or any other cause.

(3) Nothing in this section shall affect any power of the Company to pay brokerage.

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Minimum
amounts of
holdings
and trans-
fers of
stock.

12.—(1) Any ordinary stock preference stock or debenture stock of the Company may be issued and be held in amounts of ten pounds or of any integral number of pounds exceeding ten and not otherwise and the Company shall not be under any obligation to register a transfer of any such stock which would make the holding of the transferor or transferee of stock of that class less than ten pounds or other than an integral number of pounds.

(2) Notice of this enactment so far as applicable shall be stated in all certificates of ordinary stock preference stock or debenture stock to be issued by the Company after the passing of this Act.

(3) The provisions of this section shall not apply to any stock held at the passing of this Act in amounts of less than ten pounds so long as the whole of such stock is held by the present holder thereof or his legal personal representative or by a transferee direct from the present holder or his legal personal representative.

Receipt in
case of
persons not
sui juris.

13. If any money is payable by the Company to a stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Power to
apply
funds.

14. The Company may apply to the purposes of this Act to which capital is properly applicable any moneys which may be under their control or which they have raised or are authorised to raise under the authority of the existing Acts and this Act.

Application
of moneys.

15. All moneys raised under this Act whether by ordinary preference or debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable.

As to re-
served and
contingency
funds.

16.—(1) The aggregate amount which may be carried by the Company in any year to any reserved fund formed in pursuance of section 76 of the Waterworks Clauses Act 1847 and to any contingency fund formed under section 122 of the Companies Clauses Consolidation Act 1845 shall together not exceed a sum equal to one per centum of the capital for the

time being expended by the Company for the purposes of the undertaking. . A.D. 1929.

(2) The aggregate amount standing to the credit of any such reserved fund and contingency fund of the Company as aforesaid shall together not at any time exceed a sum equal to ten per centum of the capital for the time being expended by the Company for the purposes of the undertaking.

17. It shall not be lawful for the Company to carry forward at the end of any year to the credit of the profit and loss (net revenue) account any sum exceeding the total of the following amounts (that is to say) :— Limitation on carry forward.

- (a) The amount required by the Company for paying any dividend or interest which the Company are entitled or required to pay but have not paid in respect of that year;
- (b) An amount equal to the total sum which the Company would be lawfully entitled to distribute as dividends on their preference and ordinary capital in respect of the next following year; and
- (c) An amount equal to the total sum which the Company will be required to pay during the next following year as interest on any mortgages or debenture stock.

18. The directors may subscribe or make donations to infirmaries hospitals and convalescent homes and other institutions and objects and to the benevolent and sick funds of the employees of the Company and may for any of those purposes apply the funds and revenues of the Company. Power to make donations subscriptions &c.

ADMINISTRATIVE PROVISIONS.

19. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any stockholder of the Company duly authorised in writing may appoint a proxy to vote for and on behalf of the stockholder and for that purpose may execute on behalf of the stockholder the necessary form of proxy Provided that the instrument appointing the attorney shall be transmitted to the secretary before or at the same time as the instrument appointing the proxy. Appointment of proxies.

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Directors.

20.—(1) The qualification of a director shall be the possession in his own right of ordinary stock in the capital of the Company of a total nominal amount of not less than five hundred pounds.

(2) No person not being a retiring director of the Company shall be eligible to be elected a director of the Company at any general meeting unless notice in writing is given to the secretary or left at the principal office of the Company fourteen days at least before the date of election that such person will be proposed for election as a director of the Company and the secretary shall during such fourteen days and on the day of election fix a copy of every such notice so delivered in some conspicuous place in such office. No person shall be eligible to be elected a director at any general meeting of the Company unless he shall have been the holder of the qualifying amount of shares or stock for at least three months prior to his election. In the case of a retiring director or directors notice of opposition to his or their re-election shall be given in like manner.

(3) Section 87 of the Companies Clauses Consolidation Act 1845 in its application to the Company shall be read and have effect as if the word “shareholder” where it occurs in that section includes and had always included a director.

Determina-
tion of re-
muneration
of auditors.

21. In addition to the powers which the directors may exercise under the Companies Clauses Consolidation Act 1845 they may from time to time determine the remuneration of the auditors of the Company.

As to stock-
holders
register.

22. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be necessary after the passing of this Act to authenticate the register of the stockholders of the Company by affixing the common seal of the Company to such register.

Substitu-
tion of card
index for
stockholders
address
book.

23. Notwithstanding anything in section 10 of the Companies Clauses Consolidation Act 1845 the Company may substitute for the stockholders address book provided under that section a card or other index (of a type to be approved by the auditors of the Company) containing the names and addresses of the several stockholders of the Company and that section in its application to the Company shall be read and have effect accordingly.

MISCELLANEOUS PROVISIONS.

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24. Notwithstanding anything in section 70 of the Waterworks Clauses Act 1847 the Company shall be entitled to demand payment of water rates in advance by equal half-yearly payments on the first day of January and the first day of July in each year Provided that no person shall be compellable to pay water rates so demanded for any longer period in advance than three months.

Water rates
to be paid
half-yearly.

25.—(1) Notwithstanding anything in any Act relating to the Company a person shall not be entitled to demand or continue to receive from the Company a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Company to take a supply of water by meter and to pay to the Company such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the Company by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

Supplies to
caravans
shacks &c.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the justices shall be final and binding on all parties.

(3) Notwithstanding anything in this section or any other provisions of or incorporated with the existing Acts or this Act the Company shall not (unless required so to do by the Minister of Health) supply water to any caravan shack hut tent or other like structure if the local authority for the district in which the structure is situated objects to the supply being given.

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Supplies to
institutions
&c.

26. The Company shall not be bound to supply with water otherwise than by measure—

- (a) any workhouse hospital or asylum (whether public or private) sanatorium school club hotel restaurant public house or inn;
- (b) any boarding house or common lodging house capable of accommodating at least twelve persons; or
- (c) any public institution which is habitually occupied by at least twenty persons.

Supplies for
motor cars
refrigerating
apparatus
&c.

27.—(1) Where water supplied for domestic purposes is used for horses or washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Company may if a hose-pipe or other similar apparatus is used charge such sum not exceeding twenty shillings per annum as they may prescribe and (where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first Any sums chargeable under this subsection shall be payable in advance and be in addition to the rates authorised by section 51 (Rates at which water is to be supplied for domestic purposes) of the Act of 1871 and section 34 (Increase of rates and charges) of the Act of 1921 and shall be recoverable in all respects with and in the same manner as the said rates.

(2) Where water supplied by the Company to a person who takes a supply both for domestic purposes and by measure for trade or other purposes is used by him by means of a hose-pipe or other similar apparatus for horses or washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Company may if they think fit require that all water so used shall be taken by measure and paid for accordingly.

(3) Where a person who takes a supply of water for domestic purposes from the Company desires to use for or in connection with a refrigerating apparatus any of the water so supplied the Company shall be entitled to require that all water so used shall—

- (a) be taken by measure and paid for accordingly and in that event the minimum quarterly charge for the water shall be ten shillings; or
- (b) be paid for at such rates as may be agreed between the consumer and the Company.

28.—(1) At any time within three months after the passing of this Act and at any time during the period of three months before and three months after the coming into force within the limits of supply of any and every new valuation list under the Rating and Valuation Act 1925 subsequent to the valuation list which came into force on the first day of April one thousand nine hundred and twenty-nine the Company or any local authority having jurisdiction within the limits of supply may apply to the Minister of Health for a revision of the rates and charges for the supply of water authorised by the existing Acts and this Act or for the time being in force under any order of the said Minister made in pursuance of this section and if and whenever any such application is so made and the Minister is satisfied that the cost of labour and materials or other circumstance affecting the undertaking has substantially altered he may by order (subject to the provisions of subsection (3) hereof) vary either by way of increase or decrease such rates and charges or any of them.

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Revision of
rates.

(2) The making of any new valuation list under Part II of the said Act of 1925 (including any valuation list which may have come into force prior to the passing of this Act) shall be deemed to be a circumstance affecting the undertaking within the meaning and for the purposes of this section.

(3) By any order made under this section on an application made subsequent to the application authorised to be made within three months after the passing of this Act the Minister may vary or abolish the increased rate authorised by the proviso to section 51 (Rates at which water is to be supplied for domestic purposes) of the Act of 1871 as amended by section 34 (Increase of rates and charges) of the Act of 1921 for a supply of water which cannot be supplied by gravitation from any reservoir of the Company existing at the passing of the Act of 1871.

(4) The rates and charges prescribed by any order made under this section shall be of such respective amounts as to provide (after paying all proper expenses of and in connection with the working management and maintenance of the undertaking and making good depreciation and providing for any contribution which the Company may carry to any contingency or reserved fund formed under the provisions of this or any other

A.D. 1929. Act them so enabling and paying all other costs charges and expenses (if any) properly chargeable to revenue) a reasonable return on the share capital of the Company due regard being had to any capital which may be reasonably expected to be expended by the Company during the five years immediately following the date of such order.

Notice of
discon-
tinuance.

29. A notice to the Company from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given by the consumer personally at the office of the Company.

Guarantees
by district
councils.

30.—(1) Any urban or rural district council whose district is in whole or in part within the limits of supply may give and enter into any guarantee or contract for securing payment to the Company of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Company for the purpose of or with respect to the providing or laying down by the Company of any main pipe or works for the supply of water within any part of such district.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise in like manner as money may be raised under the provisions of any such general Act any money which may become payable to the Company under this section Provided that where such money is raised by a rural district council by means of a rate such rate shall be or shall be deemed to be a special rate.

(3) Nothing in this section shall be deemed to authorise any such urban or rural district council to use any water supplied by the Company under any such guarantee or contract as aforesaid in any part of the district of such council which is beyond the limits of supply and within the limits for the supply of water of any other authority supplying water under parliamentary authority without the consent of such other authority.

31. Notwithstanding anything contained in any Act or Order relating to the Company the Company shall have the exclusive right of executing any works on any of the water mains of the Company for connecting any communication or service pipe therewith and the Company shall on the request of the owner or occupier of any premises who is entitled to be supplied with water by the Company execute on any such main any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith but subject to any obligations of such owner or occupier in relation to the execution of such work and any expenses incurred by the Company in so doing shall be repaid by the owner or occupier so requesting and shall be recoverable summarily as a civil debt.

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Company to
connect
communi-
cation pipes
with mains.

32. If the owner of any house supplied with water by the Company when so required in pursuance of section 32 (Company not bound to supply several houses by one pipe) of the Act of 1887 fails within a period of three months after the receipt of such requirement to provide a separate pipe from the main into such house the Company may themselves do the work necessary in that behalf and may recover the cost incurred by them in so doing from such owner.

As to
provision of
separate
pipe.

33. Where several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Company in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer of the Company.

Mainten-
ance of
common
pipe.

34. All engines fittings apparatus and appliances (in this section referred to as "fittings") let by the Company on hire or under a hire-purchase agreement under any statutory powers shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof Provided

Fittings on
hire to
remain
property of
Company.

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As to
register of
meter.

35.—(1) Where water is supplied by measure the register of the meter or other instrument for measuring water shall be *primâ facie* evidence of the quantity of water consumed and in respect of which any water rate or rent is charged and sought to be recovered by the Company. Provided that if the Company and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined on the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

(2) In the event of any meter used by a consumer of water being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in like manner as rates for water are recoverable by the Company.

Injuring
meters &c.

36.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Company or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Company shall (without prejudice to any other right or remedy for the protection of the Company) be liable to a fine not exceeding five pounds and the Company may in addition thereto recover the amount of any damage by them sustained.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered

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to be injured any pipe meter instrument or fittings belonging to the Company or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Company the Company may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Company by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Company when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *primâ facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

37.—(1) The Company may make byelaws for the purpose of preventing waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship thickness and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as “water fittings”) to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

Byelaws for
preventing
waste &c.
of water.

(2) Such byelaws shall apply only in the case of premises to which the Company are bound to afford or do in fact afford or are prepared on demand to afford a constant supply.

(3) All such byelaws shall be subject to the provisions contained in sections 182 183 184 and 186 of the Public Health Act 1875 and all penalties imposed for the breach of any such byelaws shall be recoverable in manner

A.D. 1929. — provided by that Act for the recovery of penalties and those sections shall for the purposes of this section be construed as if the Company were a local authority within the meaning of those sections and the secretary were the clerk of the local authority.

(4) A copy of all such byelaws in force for the time being shall be kept at the office of the Company. All persons may at all reasonable times inspect such copy without payment and the Company shall cause to be delivered a printed copy of all byelaws for the time being in force to every person applying for the same on payment of a sum not exceeding sixpence for each copy.

(5) In case of failure of any person to obey such byelaws as are for the time being in force the Company may if they think fit after forty-eight hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Company as the water rates in respect of the premises are recoverable.

Cisterns to
be provided
for high-
level
supplies.

38. The Company may require that any dwelling-house erected after the passing of this Act and situate on land at a higher level than fifty feet below the service reservoir from which a supply of water is furnished by them to such dwelling-house shall be provided with a cistern or cisterns capable of containing a total quantity of water sufficient to provide an adequate supply for such dwelling-house for a period of twenty-four hours and the Company shall not be required to supply any such dwelling-house until the same is provided with a cistern in conformity with the requirements of this section.

Extension
of power to
inspect
premises.

39. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 any officer of the Company may at all reasonable times between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Company in order to examine if there be any waste or misuse of such water and if any person hinder any such officer from entering or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds.

40. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Company who shall without the authority of the Company turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Company and provided or available for the purposes of affording such supply shall be deemed to commit an offence under section 60 of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly.

A.D. 1929.

Penalty for
opening
valves &c.

41. In addition to any lands which the Company are by the existing Acts authorised to acquire the Company may by agreement purchase or take leases of and hold further lands within the limits of supply for any of the purposes of the undertaking or any easement (not being an easement of water in which persons other than the grantors have an interest) in over or under any such lands but the quantity of lands held by the Company in pursuance of this section shall not at any time exceed ten acres. Provided that the Company shall not create or permit any nuisance on any such lands nor erect any buildings thereon except such as are required for or connected with or incident to the purposes of the undertaking.

Acquisition
of lands by
agreement.

42.—(1) For the purpose of protecting any of their waters and waterworks against pollution nuisance encroachment or injury the Company may by agreement purchase take on lease and acquire any lands and may hold such lands and any other lands which the Company may have acquired for the purposes of the undertaking so long as they shall deem it necessary or expedient for those purposes.

Power to
hold lands
and exercise
powers for
protection
of waters.

(2) The Company shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor shall they erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the undertaking but the restrictions of this section as to the erection of buildings shall not apply in respect of lands leased or sold by the Company.

A.D. 1929.
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(3) The Company may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Company are empowered to take from being polluted and the Company may for the purposes aforesaid carry any such drain sewer or watercourse under across and along any street or road traversing the said lands subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes..

(4) The Company may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of any of the works forming part of the undertaking with reference to the execution by the Company or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters authorised to be collected diverted and appropriated by the Company flowing to upon or from such lands directly or derivatively into any of the works forming part of the undertaking.

Retention
and disposal
of lands.

43. Notwithstanding anything in this or any other Act to the contrary the Company may retain hold and use for such time and for the purposes of the undertaking or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under the existing Acts and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Purchase of
water in
bulk.

44. The Company may enter into and carry into effect agreements with any company body or person

supplying water under parliamentary authority for the purchase of water in bulk by the Company for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Company for the purposes of the undertaking. A.D. 1929. —

45. Any notice to be served by the Company on a person supplied with water shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or in print or by a stamp or if it be a notice to pay any charge in respect of a supply of water by the name either of the secretary or of such other officer as aforesaid being affixed thereto as aforesaid and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises. Authentication and service of notices by Company.

46. Where the payment of more than one sum by any person is due under this Act or any other Act from time to time relating to the Company any summons or warrant issued for the purposes of any of those Acts in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him. Several sums in one summons.

47. Except where otherwise expressly provided all offences against this Act or any other Act from time to time relating to the Company and all penalties forfeitures costs and expenses imposed or recoverable thereunder or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

48. Proceedings for the recovery of any demand made under the authority of this Act or any other Act Recovery of demands.

A.D. 1929. from time to time relating to the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Judges not
disqualified.

49. A judge of any court or a justice shall not be disqualified from acting in the execution of any Act or Order from time to time relating to the Company by reason of his being liable to any rate or charge for the supply of water.

Repeal.

50. The following provisions of the existing Acts are hereby repealed (that is to say) :—

The Act of 1871—

- Section 35 (Qualification of directors);
- Section 53 (Penalty for using water for other than domestic purposes);
- Section 55 (For preventing fouling water);
- Section 59 (Notice of discontinuance);
- Section 61 (Company's officers to enter buildings).
- Section 62 (Power to Company to make regulations for preventing waste of water);
- Section 63 (Power to Company to refuse supply where regulations not complied with);
- Section 64 (Recovery of charges for supply of water);
- Section 65 (Recovery of sums by action);
- Section 66 (Incoming tenants not liable to pay arrears of water rent &c.);
- Section 67 (Liability to water rent not to disqualify justices &c.);
- Section 68 (Authentication of notices);
- Section 69 (Application of penalties).

The Act of 1887—

- Section 5 (Power to hold &c. lands for protection of works);
- Section 28 (Fraudulently injuring meters &c.);

- Section 29 (Repair of meters); A.D. 1929.
Section 30 (Register of meter to be primâ facie
evidence);
Section 33 (Where several houses supplied by one
pipe each to pay);
Section 34 (Supply of water to tenements in a
row);
Section 38 (Form and service of notices by
Company);
Section 39 (Contents of summons);
Section 40 (Costs of distress).

The Act of 1921—

- Section 31 (Appointment of receiver);
Section 35 (Amending obligation as to supply of
water);
Section 36 (Supply of water for washing carriages
&c.).

51. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue. Costs of Act.

A.D. 1929.

The SCHEDULE referred to in the
foregoing Act.

STATEMENT OF CAPITAL (STOCK).

Act.	Description of Capital.	Maximum Dividend Authorised.	Total Paid up.		Remaining to be Issued.	Total Amounts Authorised.
			Nominal.	Premium.		
Act of 1871	Ordinary stock	10%	£ 60,000	£ — s. d.	£ —	£ 60,000
Act of 1887	Ordinary stock	7%	252,700	42,669 8 11	—	490,000
Act of 1903						
Act of 1915	Preference stock	4½%	159,738	34,892 11 1	—	490,000
Act of 1921						
			£ 472,438	£77,562 0 0	—	£550,000

STATEMENT OF LOAN CAPITAL.

Act.	Description of Loan.	Rate of Interest.	Borrowed.	Remaining to be Borrowed.	Total Amount Authorised.
Act of 1871	Debenture stock -	3¼%	£ 59,719	£	£
Act of 1887	Debenture stock (redeemable).	7%	25,000	97,685	275,000
Act of 1903	Debenture stock (redeemable).	5½%	42,596		
Act of 1915	Debenture stock -	5%	50,000		
Act of 1921	Debenture stock -	—	—		
			£177,315	£97,685	£275,000

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